

Court No. - 3

Case :- WRIT - C No. - 7018 of 2024

Petitioner :- Mithu @ Mithulal

Respondent :- Managing Director Madhyanchal Vidyut
Veteran Nigam Limited Lko. And 5 Others

Counsel for Petitioner :- Dharmendra Pratap Singh, Anil
Kumar Tiwari

Counsel for Respondent :- Aprajita Bansal

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Shree Prakash Singh, J.

Heard learned counsel for the petitioner and Ms. Aprajita Bansal, learned counsel who appears on behalf of the respondents.

This writ petition has been filed by the petitioner with the following main prayer:-

"(i) Issue a writ, order or direction in the nature of Mandamus commanding and directing the opposite parties to take the strict action against the illegal act of opposite party no 3 to 5.

(ii) To direct the opposite party no 1 and 2, to decide the Complaint/Application filed by petitioner on dated 18/4/2024 as (Annexure No. 1), pending before the opposite party no 1 and 2 expeditiously preferable within a stipulated period fixed by this Hon'ble Court, in the interest of justice."

It is the case of the petitioner that earlier he used to live in joint household. The mother and brother of the applicant was living in the same house. The mother of the applicant was using same electricity connection till her death on 18.6.2021. Now, the respondents have issued electricity bill which is against the petitioner alone. The petitioner has made an application to the respondent nos. 1 and 2 saying that the brother of the applicant is also liable to pay half of the outstanding amount of the bill upto 18.6.2021 and he is also liable to pay all the outstanding amount after 18.6.2021.

Ms. Aparajita Bansai, learned counsel has pointed out that dispute with regard to billing can be resolved by making an application to the S.D.O (Electricity) concerned under paragraph 6.5 of the Electricity Supply Code.

This petition is **disposed of** with a direction to the petitioner to

approach the respondent no.3 by making appropriate application after completing all formalities within two weeks from today. If such an application is made, the respondent no.3 shall give opportunity of hearing to all concerned and then pass appropriate order within six weeks thereafter.

Order Date :- 14.8.2024

Ram Murti